

**MEMORANDUM OF
UNDERSTANDING (MoU)**

BETWEEN

**RAMCO INSTITUTE OF TECHNOLOGY,
RAJAPALAYAM-626117**

&

**MEDSBY HEALTHCARE AND ENGINEERING
SOLUTIONS, COIMBATORE-641012**



தமிழ்நாடு தமில்நாடு TAMILNADU

29-07-2019

RAMCO INSTITUTE OF
TECHNOLOGY - RAJAPALAYAM

M. Ayyanarsamy
Stamp Vendor
Licence No. 5730/A1/2010-20
33-B, Railway Feeder Road,
Rajapalayam-626117

BE 140050

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (hereinafter called as the 'MoU') is entered into on this the 30th day of - July - Two Thousand Nineteen,

BETWEEN

Ramco Institute of Technology, North Venganallur Village, Rajapalayam - 626 117, Virudhunagar District, Tamil Nadu, the First Party represented herein by its Head of the Institution **Principal** (hereinafter referred as '**First Party**', the institution which expression, unless excluded by or repugnant to the subject or context shall include its successors - in-office, administrators and assigns).

AND

MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS, 37, 3rd street (extn), Gandhipuram, Coimbatore, Tamil Nadu 641012- India, the Second Party, and represented herein by its Operations Head, **Proprietor**, (hereinafter referred to as "**Second Party**", company which expression, unless excluded by or repugnant to the subject or context shall include its successors - in-office, administrators and assigns).

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(First Party and Second Party are hereinafter jointly referred to as 'Parties' and individually as 'Party')

WHEREAS:

- A) First Party is a Higher Educational Institution named:

Name of Institution: Ramco Institute of Technology

Ramco Institute of Technology, (RIT) promoted by Raja Charity Trust, was established during the academic year 2013-14. It is fully supported by the Ramco Group to create quality Engineers for future needs. The Institution is approved by AICTE and is affiliated to Anna University, Chennai. Currently, RIT offers 4-year undergraduate Engineering programmes namely Civil Engineering, Computer Science and Engineering, Electrical and Electronics Engineering, Electronics and Communication Engineering and Mechanical Engineering, and plans to offer postgraduate and research programmes in Engineering and science. The overall management of the Institution is vested with the Governing Council under the able leadership of Shri. P.R. Venketrama Raja, Chairman, RAMCO Group of Industries. The Advisory Committee of the Institute is headed by Prof. M.S. Ananth, former Director of IIT Madras and is ably supported by leading Professors of IIT Madras, Prof.M.S.Palanichamy, former Vice-Chancellor of Tamilnadu Open University and other prominent academicians. The Advisory Committee plays a vital role in recruiting the best faculty, training them, promoting innovative teaching and encouraging research.

- B) First Party & Second Party believe that collaboration and co-operation between themselves will promote more effective use of each of their resources, and provide each of them with enhanced opportunities.
- C) The Parties intent to co-operate and focus their efforts on cooperation within area of Skill Based Training, Education and Research.

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- D) Both Parties, being legal entities in themselves desire to sign this MOU for advancing their mutual interest.
- E) **MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS**, the Second Party is engaged in Business, Manufacturing, Skill Development, Education and R&D Services in the fields of – Medical and Industrial 3D printing, Biomedical and Biomechanics laboratory equipments, manufacturing and sales and related fields.
- F) **MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS** , the Second Party is self promoted. The company is an innovator in wearable gadgets, fitness gadgets, cardiac care, home healthcare, bio-signal simulators, 3D printing, electronic product development & testing equipment. Medsby was founded in the year 2013, by the innovator and CEO of the company G.GuruPrasandh.
- G) Give related information, its branches, and dimensional information about the industry concerned with whom the MoU is sworn.

MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS , currently has two branch offices. Branch office 1; 177, Kalliammal Complex, Gopalaswamy Kovil street, Ganapathy, Coimbatore 641006, with a total dimensional area of 600 sq ft. Branch office 2; 3rd Floor, Rainbow Chelli, Thiruganasambadhar Street, Srinivasa Nagar, Madipakkam, Chennai- 600091. with a total dimensional area of 700 sq ft.

MEDSBY and RAMCO intends to provide RAMCO students with, Industry and Institution interaction and to give an insight into the latest developments / requirements of the industries

NOW THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES SET FORTH IN THIS MOU, THE PARTIES HERETO AGREE AS FOLLOWS:

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CLAUSE 1: CO-OPERATION

- 1.1 Both Parties are united by common interests and objectives, and they shall establish channels of communication and co-operation that will promote and advance their respective operations within the **Institution** and its related wings. The Parties shall keep each other informed of potential opportunities and shall share all information that may be relevant to secure additional opportunities for one another.
- 1.2 First Party and Second Party co-operation will facilitate effective utilization of the intellectual capabilities of the faculty of First Party providing significant inputs to them in developing suitable teaching / training systems, keeping in mind the needs of the industry, the Second Party.
- 1.3 The general terms of co-operation shall be governed by this MOU. The Parties shall cooperate with each other and shall, as promptly as is reasonably practical, enter into all relevant agreements, deeds and documents (the 'Definitive Documents') as may be required to give effect to the actions contemplated in terms of this MOU. The term of Definitive Documents shall be mutually decided between the Parties. Along with the Definitive Documents, this MOU shall represent the entire understanding as to the subject matter hereof and shall supersede any prior understanding between the Parties on the subject matter hereof.

CLAUSE 2: SCOPE OF THE MoU

- 2.1 The budding graduates from the institutions could play a key role in technological up-gradation, innovation and competitiveness of an industry. Both parties believe that close co-operation between the two would be of major benefit to the student community of **Civil Engineering, Computer Science and Engineering, Electrical and Electronics Engineering, Electronics and Communication Engineering and Mechanical Engineering** offered at RIT to enhance their skills and knowledge.

- 2.2 **Curriculum Design:** Second Party will give valuable inputs to the First Party in teaching / training methodology and suitably customize the curriculum so that the students fit into the industrial scenario meaningfully.
- 2.3 **Industrial Training & Visits:** Industry and Institution interaction will give an insight into the latest developments / requirements of the industries; the Second Party to permit the Faculty and Students of the First Party to visit its group companies and also involve in Industrial Training Programs for the First Party. The industrial training and exposure provided to students and faculty through this association will build confidence and prepare the students to have a smooth transition from academic to working career. The Second Party will provide its Labs / Workshops / Industrial Sites for the hands-on training of the learners enrolled with the First Party.
- 2.4 **Internships and Placement of Students:** Second Party will actively engage to help the delivery of the Internship and placement of students of the First Party into internships/jobs, as per AICTE internship Policy. The Second Party will also register itself on AICTE Internship Policy Portal for disseminating the Internship opportunities available with them.
- 2.5 **Research and Development:** Both Parties have agreed to carry out the joint research activities in the fields of **MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS, activities and services**
- 2.6 **Skill Development Programs:** Second Party to train the students of First Party on the emerging technologies in order to bridge the skill gap and make them industry ready.
- 2.7 **Guest Lectures:** Second Party to extend the necessary support to deliver guest lectures to the students of the First Party on the technology trends and in-house requirements.

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- 2.8 **Faculty Development Programs:** Second Party to train the Faculty of First Party for imparting industrial exposure/ training as per the industrial requirement considering the National Occupational Standards in concerned sector, if available.
- 2.9 Both Parties to obtain all internal approvals, consents, permissions, and licenses of whatsoever nature required for offering the Programs on the terms specified herein.
- 2.10 There is no financial commitment on the part of the **Ramco Institute of Technology**, the First Party to take up any program mentioned in the MoU. If there is any financial consideration, it will be dealt separately. MEDSBY to provide free 3Dprinter, raw materials and support develop infrastructure for rapid prototyping, production and product development within the RAMCO. The details of the 3D printer provided will added as Annexure 1 along with this MoU document. MEDSBY and RAMCO to commercialize products developed from the collaboration

CLAUSE 3 INTELLECTUAL PROPERTY

- 3.1 Nothing contained in this MoU shall, by express grant, implication, Estoppel or otherwise, create in either Party any right, title, interest, or license in or to the intellectual property (including but not limited to know-how, inventions, patents, copy rights and designs) of the other Party.

CLAUSE 4 VALIDITY

- 4.1 This Agreement will be valid until it is expressly terminated by either Party on mutually agreed terms, during which period **MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS**, the Second Party, as the case may be, will take effective steps for implementation of this MOU. Any act on the part of **MEDSBY HEALTHCARE AND ENGINEERING SOLUTIONS**, the Second Party after termination of this Agreement by way of communication, correspondence etc., shall not be construed as an extension of this MoU.

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- 4.2 Both Parties may terminate this MoU upon 30 calendar days' notice in writing. In the event of Termination, both parties have to discharge their obligations.

On termination of agreement before the period of 4 years from the date of signing, MEDSBY has the right to claim its proprietary products and other materials including the 3D printers and raw materials, mentioned in the Annexure 1, which were provided free of cost.

On successful completion of the MoU period of 4 years those products and materials mentioned in the Annexure 1, becomes the property of RAMCO.

CLAUSE 5 RELATIONSHIP BETWEEN THE PARTIES

- 5.1 It is expressly agreed that **First Party** and **Second Party** are acting under this MoU as independent contractors, and the relationship established under this MoU shall not be construed as a partnership. Neither Party is authorized to use the other Party's name in any way, to make any representations or create any obligation or liability, expressed or implied, on behalf of the other Party, without the prior written consent of the other Party.

Neither Party shall have, nor represent itself as having, any authority under the terms of this MoU to make agreements of any kind in the name of or binding upon the other Party, to pledge the other Party's credit, or to extend credit on behalf of the other Party.

First Party

Second Party

Any divergence or difference derived from the interpretation or application of the MoU shall be resolved by arbitration between the parties as per the Arbitration Act, 1996.

The place of the arbitration shall be at District Head Quarters of the First Party. This undertaking is to be construed in accordance with Indian Law with exclusive jurisdiction in the Courts of **Name of City: Rajapalayam.**

AGREED:

For **Ramco Institute of Technology**

Principal

Authorized Signatory

Dr. L.GANESAN
Principal
Ramco Institute of Technology
Rajapalayam - 626 117.

Ramco Institute of Technology

North Venganallur Village

Rajapalayam - 626 117

Virudhunagar District, Tamil Nadu

+91-4563-233400

+91-4563-233403

E-mail: principal@ritrjpm.ac.in

Web: www.ritrjpm.ac.in

Witness 1

S. Rajakumar
30/7/19
(S. RAJAKUMARAKARAN)
vice principal/RET

Witness 2

amunug
K. S. SELVARAJ
DAM (A) - RIT



For **Medsby Healthcare and**

Engineering Solutions

For **MEDSBY HEALTHCARE & ENGINEERING SOLUTIONS**

Proprietor

Authorized Signatory

MEDSBY HEALTHCARE & ENGINEERING SOLUTIONS

37, 3rd Street (Extn), Gandhipuram,

Coimbatore - 641 012.

TIN - 33522184973

CST 1165938 Dt. 1/6/2014

Medsby Healthcare and Engineering Solutions

37, 3rd street (extn), Gandhipuram,

Coimbatore- 641012

Tamil Nadu

+91 8015861849

E-mail: guruprasandh.g@gmail.com

Web: www.medsby.in

Witness 1

Koushik DEVARAJAN
Project Engineer, Medsby.

Witness 2

Gnanavel G
Web developer, Medsby